Syllabus

# BOST ET AL. *v.* ILLINOIS STATE BOARD OF ELECTIONS ET AL.

## CERTIORARI TO THE UNITED STATES COURT OF APPEALS FOR THE SEVENTH CIRCUIT

No. 24–568. Argued October 8, 2025—Decided January 14, 2026

Illinois law requires election officials to count mail-in ballots postmarked or certified no later than election day and received within two weeks of election day. Congressman Michael Bost and two other political candidates filed a lawsuit claiming that counting ballots received after election day violates federal law. They principally contended that doing so conflicts with 2 U. S. C. § 7 and 3 U. S. C. § 1, which set election day as the Tuesday following the first Monday in November. The district court dismissed the case, and the Seventh Circuit affirmed on the ground that petitioners lacked standing.

*Held*: As a candidate for office, Congressman Bost has standing to challenge the rules that govern the counting of votes in his election. Pp. 76–83.

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(a) Under Article III of the Constitution, plaintiffs must have a "personal stake" in a case to have standing to sue. *FDA* v. *Alliance for Hippocratic Medicine*, 602 U. S. 367, 379. An unlawful election rule can injure a candidate in several ways: It might cause him to lose the election, require him to expend additional resources, or decrease his vote share and damage his reputation. But winning, and doing so as inexpensively and decisively as possible, are not a candidate's only interests in an election.

Candidates also have an interest in a fair process. Candidates seek to represent the people, and their interest in that prize cannot be severed from their interest in the electoral process. Win or lose, candidates suffer when the process departs from the law. The harm to candidates from an unfair and inaccurate election is not common to all. While voters also have a general interest in an accurate vote tally, a candidate's interest differs in kind. Those who spend time and resources seeking to claim the right to voice the will of the people have "an undeniably different—and more particularized—interest" in knowing what that will is. *Hotze* v. *Hudspeth*, 16 F. 4th 1121, 1126 (Oldham, J., dissenting).

Rules that undermine the integrity of the electoral process also undermine the winner's political legitimacy. The counting of unlawful votes—or discarding of lawful ones—erodes public confidence in election

results and the elected representative. "[R]eputational harms" are classic Article III injuries. *TransUnion LLC* v. *Ramirez*, 594 U. S. 413, 425. And they are particularly concrete for those whose very jobs depend on the support of the people. Pp. 76–79.

(b) Candidates do not need to show a substantial risk that a rule will cause them to lose the election or prevent them from achieving a legally significant vote threshold in order to have standing. Requiring such a showing could channel many election disputes to shortly before election day or after. Only then will many candidates be able to predict with any certainty that a rule will be outcome determinative. Yet the Court has repeatedly emphasized that lower federal courts should ordinarily not alter the election rules on the eve of an election. Such late-breaking, court-ordered rule changes can result in voter confusion and undermine confidence in the integrity of electoral processes. The democratic consequences can be worse if courts intervene only after votes have been counted. Counting first and ruling upon legality afterwards is not a recipe for producing election results that have the public acceptance democratic stability requires.

Premising standing on a candidate's risk of election loss or failure to achieve a certain vote threshold would also convert Article III judges into political prognosticators and "invite[ ] findings on matters as to which neither judges nor anyone else can have any confidence." *Rucho* v. *Common Cause*, 588 U. S. 684, 711 (internal quotation marks omitted). "[A]ccurately predicting electoral outcomes is not" a "simple" endeavor. *Id.*, at 712. And the limits of federal courts' jurisdiction do not rest upon such "unstable ground outside judicial expertise." *Id.*, at 713.

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Nor would requiring candidates to plead a substantial risk of harm to their vote share leave courts on any surer footing. Such an approach would force judges to assess whether an election rule is likely to disadvantage a particular candidate—determinations judges are no better qualified to make than assessing a candidate's likelihood of winning or losing. Candidates would also have to plead and prove that voters who take advantage of the challenged rule will favor their rivals, which may require divulging information about political vulnerabilities. Faced with that prospect, many candidates are sure to wait until after votes are counted to sue.

Article III does not require this result. Candidates have a concrete and particularized interest in the rules that govern the counting of votes in their elections, regardless whether those rules harm their electoral prospects or increase the cost of their campaigns. Their interest extends to the integrity of the election—and the democratic process by which they earn or lose the support of the people they seek to represent. Pp. 79–82.

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114 F. 4th 634, reversed and remanded.

ROBERTS, C. J., delivered the opinion of the Court, in which THOMAS, ALITO, GORSUCH, and KAVANAUGH, JJ., joined. BARRETT, J., filed an opinion concurring in the judgment, in which KAGAN, J., joined, *post*, p. 83. JACKSON, J., filed a dissenting opinion, in which SOTOMAYOR, J., joined, *post*, p. 87.

*Paul D. Clement* argued the cause for petitioners. With him on the briefs were *James Y. Xi*, *T. Russell Nobile*, and *Robert D. Popper*.

*Michael E. Talent* argued the cause for the United States as *amicus curiae* in support of petitioners. With him on the brief were *Solicitor General Sauer*, *Assistant Attorney General Dhillon*, *Deputy Solicitor General Mooppan*, *Deputy Assistant Attorney General Osete*, and *Andrew G. Braniff*.

*Jane Elinor Notz*, Solicitor General of Illinois, argued the cause for respondents. With her on the brief were *Kwame Raoul*, Attorney General of Illinois, *Alex Hemmer*, Deputy Solicitor General, and *Carson R. Griffis*, *R. Sam Horan*, and *Samantha Sherman*, Assistant Attorneys General.*

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*Briefs of *amici curiae* urging reversal were filed for the State of West Virginia et al. by *John B. McCuskey*, Attorney General of West Virginia, and *Michael R. Williams*, Solicitor General, and by the Attorneys General for their respective States as follows: *Tim Griffin* of Arkansas, *James Uthmeier* of Florida, *Chris Carr* of Georgia, *Brenna Bird* of Iowa, *Liz Murrill* of Louisiana, *Andrew Bailey* of Missouri, *Michael T. Hilgers* of Nebraska, *Gentner Drummond* of Oklahoma, *Alan Wilson* of South Carolina, and *Marty Jackley* of South Dakota; for the American Center for Law and Justice by *Jay Alan Sekulow*, *Walter M. Weber*, *Benjamin P. Sisney*, *Jordan A. Sekulow*, *Stuart J. Roth*, and *Andrew J. Ekonomou*; for America's Future et al. by *William J. Olson*, *Jeremiah L. Morgan*, *Michael Boos*, and *Patrick M. McSweeney*; for the Center for Election Confidence by *Bradley A. Benbrook* and *Stephen M. Duvernay*; for the Election Integrity Project California, Inc., by *Michael J. O'Neill*, *Matthew C. Forys*, and *Richard P. Hutchison*; for the Honest Elections Project by *Jason B. Torchinsky*, *Jonathan P. Lienhard*, and *Andrew D. Watkins*; for the League of Women Voters et al. by *Ari Savitzky*, *Sophia Lin Lakin*, *Davin Rosborough*, *Theresa Lee*, *Cecillia D. Wang*, *Evelyn Danforth-Scott*, *Scott Mi-*

CHIEF JUSTICE ROBERTS delivered the opinion of the Court.

Three political candidates challenged Illinois's procedure for counting mail-in ballots received after election day. We consider whether the candidates have standing to maintain their suit.

I

Illinois law requires election officials to count mail-in ballots postmarked or certified no later than election day and received within two weeks of election day. Ill. Comp. Stat., ch. 10, §§ 5/18A–15(a), 5/19–8(c) (West 2022). In May 2022, Congressman Michael Bost and Presidential elector nominees Laura Pollastrini and Susan Sweeney (petitioners) sued the Illinois State Board of Elections and its executive direc-

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*chelman*, and *John W. Whitehead*; for the NRCC et al. by *Michael E. Toner*, *Jeremy J. Broggi*, *Brandis L. Zehr*, *Blake D. Murphy*, and *Ryan G. Dollar*; for the Phyllis Schlafly Eagles et al. by *Andrew L. Schlafly*; for the Public Interest Legal Foundation by *J. Christian Adams*; for the Republican National Committee by *Thomas R. McCarthy* and *Gilbert C. Dickey*; for Restoring Integrity and Trust in Elections et al. by *Christopher O. Murray*, *Julian R. Ellis, Jr.*, and *Michael L. Francisco*; and for Michael T. Morley et al. by *Michael T. Morley, pro se.*

Briefs of *amici curiae* urging affirmance were filed for the District of Columbia et al. by *Brian L. Schwalb*, Attorney General of the District of Columbia, *Caroline S. Van Zile*, Solicitor General, *Ashwin P. Phatak*, Principal Deputy Solicitor General, and *Chloe Q. Pan*, Assistant Attorney General, and by the Attorneys General for their respective States as follows: *Kris Mayes* of Arizona, *Rob Bonta* of California, *Philip J. Weiser* of Colorado, *William Tong* of Connecticut, *Kathleen Jennings* of Delaware, *Anne E. Lopez* of Hawaii, *Anthony G. Brown* of Maryland, *Dana Nessel* of Michigan, *Keith Ellison* of Minnesota, *Aaron D. Ford* of Nevada, *Matthew J. Platkin* of New Jersey, *Raúl Torrez* of New Mexico, *Letitia James* of New York, *Dan Rayfield* of Oregon, *Peter F. Neronha* of Rhode Island, *Charity R. Clark* of Vermont, and *Nicholas W. Brown* of Washington; for Bipartisan Former State Secretaries of State by *Donald K. Sherman* and *John B. Hill*; and for the Democratic Party of Illinois by *David R. Fox* and *Richard A. Medina.*

*Erick G. Kaardal* filed a brief for PA Fair Elections et al. as *amici curiae.*

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